

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, June 27, 2022. Contents noted. Recommend approval of the negotiated plea agreement of charges and specifications in DADS No. 2021-23420, CCRB No. 201903851, against Sergeant Frederick Manney, Tax Registry No. 949938. The case was conferenced on June 14, 2022, before Assistant Deputy Commissioner of Trials – Paul Gamble, who approved the negotiated penalty of a Reprimand, after a guilty plea.

Jonathan Darche

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board





DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23420
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, MANNEY	FIRST FREDERICK	M.I.	COMMAND 090 PRECINCT
SHIELD NO. 4797	TAX REGISTRY NO. 949938	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Sergeant Frederick Manney, on or about April 23, 2019, at approximately 2330, while assigned to 079 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) in Brooklyn without sufficient legal authority.	PLEADED GUILTY	REPRIMAND .00 - It is recommended that the Respondent be Reprimanded.
2 . Sergeant Frederick Manney, on or about April 23, 2019, at approximately 2330, while assigned to 079 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched a lockbox belonging to § 87(2)(b) inside of § 87(2)(b) in Brooklyn without sufficient legal authority.	PLEADED GUILTY	
3 . Sergeant Frederick Manney, on or about April 23, 2019, at approximately 2330, while assigned to 079 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	PLEADED GUILTY	

Edward A. Ca
FIRST DEPUTY COMMISSIONER

01/18/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

[Signature]
POLICE COMMISSIONER

3/13/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 6, 2023

Re: CCRB Case No. 201903851 (Incident Date: April 23, 2019) involving Police Officer Jonathan Arias, Tax No. 941359 (DADS No. 2021-23416), Police Officer Carlos Zambrano, Tax No. 939814 (DADS No. 2021-23414), and Sergeant Frederick Manney, Tax No. 949938 (DADS No. 2021-23420)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officers and has determined that the CCRB recommendation of "Training" (originally described by CCRB as a "Reprimand," but subsequently clarified to be "Training" in letters from Executive Director Darche which were forwarded to the Department with the negotiated dispositions) is appropriate in this matter. However, while formalized training will properly address the substantiated allegations and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications is not warranted in cases where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Arias, Police Officer Zambrano, and Sergeant Manney will receive formalized training in Administrative Guide 304-06 (Prohibited Conduct/Abuse of Authority – Entry of Premise) and in Administrative Guide 304-11 (Compliance with New York City Right to Know Act/Business Card).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Matthew Schieffer, Esq.
Michael Martinez, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

March 10, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jonathan Arias (941359), Police Officer Carlos Zambrano (939814), and Sergeant Frederick Manney (949938)
Disciplinary Case Nos.: 2021-23416, 2021-23414, and 2021-23420

Dear Commissioner Sewell:

I am writing in response to the letter from Deputy Chief Lourdes Soto, dated March 6, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Soto’s notification.

Deputy Chief Soto stated that after reviewing the recommendation of CCRB, you determined that the recommended penalty of “Training” was appropriate but did not require the imposition of charges & specifications against all three respondents.

At the time this plea was agreed to, the CCRB was not resolving APU cases for disciplines other than charges. Today, the CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If the CCRB were to resolve this case today, and the respondents were to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Matthew Schieffer, Esq.
Michael Martinez, Esq.

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, January 18, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23420 against Sergeant Frederick Manney, Tax #949938, for a Reprimand. Assistant Deputy Commissioner, Trials Paul Gamble, reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I do not concur.

Charges and Specifications is an egregious penalty in regard to this case. It is disingenuous to recommend a Reprimand while not also recommending the dismissal of the Charges and Specifications. The Respondent's record should not be tarnished with Charges and Specifications, when CCRB is recommending a Reprimand (Training) and he is accepting it. Based on the totality of the circumstances and fairness in the Disciplinary process, I recommend the Dismissal of Charges, Specifications, and Training in in Administrative Guide Procedure No. 304-06 (Prohibited Conduct/Abuse of Authority- Entry of Premise) and Administrative Guide Procedure No. 304-11 (Compliance with New York City Right to Know Act).

RECOMMEND APPROVAL.

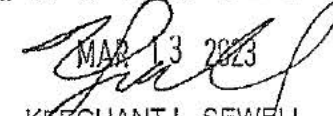


Edward A. Caban

FIRST DEPUTY COMMISSIONER

EAC/m

APPROVED



MAR 13 2023
KEECHANT L. SEWELL
POLICE COMMISSIONER